TENTATIVE RULINGS

DEPT W15

JUDGE RICHARD Y. LEE

Date: August 13, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely*: (1) all counsel and self-represented parties appearing for such hearings **must,** prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website (link here); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (Local Rule 375(c)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Yu vs. Kaiser Permanente, 23-01361330	Petitioner/Defendant, Southern California Permanente Medical Group, erroneously sued and served as Kaiser Permanente ("SCPMG"), requests that the court confirm the arbitration award and enter judgment according to it. No opposition has been filed. Here, the arbitration award granting SCPMG's motion for judgment on the pleadings and entering judgment in Petitioner's favor was served on October 16, 2025. (Attachment 8(c) to Petition.) The instant Petition was filed on February 4, 2026, such that it was filed within four years from the date of service of a signed copy of the arbitration

		award upon the SCPMG and at least ten days after service of the award upon the SCPMG. Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc. § 1285; *see Cinel v Christopher* (2012) 203 Cal.App.4th 759, 765 [prevailing party in arbitration may petition court to confirm award, while losing party may petition to modify or vacate award entirely].) The moving party has the burden of proving the existence of the award as well as a valid arbitration agreement. (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1223.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it correct the award and confirms it as corrected, vacates the award or dismisses the proceeding. (Code Civ. Proc. § 1286.) The petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. (Code Civ. Proc. § 1285.) It must also: (a) set forth the substance of or attach a copy of the arbitration agreement; (b) set forth the name of the arbitrators; and (c) set forth or attach a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc. § 1285.4.) "If the award is confirmed, judgment shall be entered in conformity therewith. The judgment so entered has the same force and effect as, and is subject to all the provisions of law relating to, a judgment in a civil action of the same jurisdictional classification; and it may be enforced like any other judgment of the court in which it is entered, in an action of the same jurisdictional classification." (Code Civ. Proc. § 1287.4.) Here, the instant Petition names as respondents all parties to the arbitration (Petition, ¶ 1), attaches a copy of the arbitration agreement (Attachment 4(b)), sets forth the name of the arbitrator (Petition, ¶ 6), and attaches a copy of the award and the written opinion of the arbitrator (Attachment 8(c).) As such, SCPMG has met its burden to prove the existence of the award as well as a valid arbitration agreement. The Court GRANTS the Petition and confirms the arbitration award. SCPMG to prepare and submit proposed judgment. t

		The ADR Review Hearing is vacated. *SCPMG to give notice.*
102	The Standard Fire Insurance Company vs. Milton Roy Company, Hartell Division, 25-01473457	<u>PRO HAC VICE</u> The unopposed applications of attorneys (1) Ryan C. Edwards and (2) Taylor S. Lovejoy to appear pro hac vice on behalf of Defendant Milton Roy, LLC are GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40. *Moving attorney to give notice*. <u>MOTION TO COMPEL DEPO</u> Plaintiff The Standard Fire Insurance Company ("Plaintiff") moves to compel Defendant Viking Range, LLC's representative Michael Lacombe to appear for a deposition. Plaintiff also asks for monetary sanctions in the amount of $561.65 against Viking Range, LLC's attorney, Sierra J. Chinn-Liu, Esq., for the reasonable costs and fees associated with having to bring this motion. The Motion is made pursuant to Code of Civil Procedure section 2025.450, et seq. and 2023.030(a). Defendant Viking Range, LLC ("Defendant") oppose the motion. The Motion is CONTINUED TO September 3, 2026 at 1:30 p.m. The Court finds that whether Mr. Lacombe signed the verification to Defendant's discovery responses is of great significance to the issues presented in this motion. However, Plaintiff has not provided any admissible evidence that Mr. Lacombe signed a discovery verification in defense of this case. Plaintiff also did not provide admissible evidence that Mr. Lacombe appeared at destructive testing on Defendant's behalf. Plaintiff is ordered to file evidence establishing that Mr. Lacombe signed the verification on behalf of Defendant and any other evidence supporting Mr. Lacombe's role and/or responsibilities in relation to Defendant no later than 9 court days before the continued hearing. Defendant is permitted to file a 3 page reply in addition to evidence opposing Plaintiff's contentions no later than 5 court days before the continued hearing. If Plaintiff's statement is true, that Mr. Lacombe signed the discovery verification on behalf of Defendant in defense of this case, the Court strongly encourages the parties to work

		together to establish a mutually agreeable date to conduct Mr. Lacombe's deposition. *Plaintiff to give notice.*
103	BKC Entertainment LLC vs. K1 Speed Franchising, Inc., 23-01317103	*Off-calendar.*
104	Perceptive Tax Advisory Group, LLC vs. Zero Effort Nutrition, L.P., 26-01549057	Defendant Zero Effort Nutrition LP seeks an order sustaining its demurrer to the 7th cause of action of Plaintiff's Complaint and an order changing venue to Los Angeles. (ROA 10) Initially, on 2/18/2026 Plaintiff PERCEPTIVE TAX ADVISORY GROUP, LLC, a California limited liability company filed a Complaint for: 1. Breach of Contract; 2. Open Book Account; 3. Account Stated; 4. Money Had and Received; 5. Fraud – Intentional Misrepresentation – Civil Code §§ 1709, 1710(1); 6. Fraud – False Promise – Civil Code §§ 1709, 1710(4); 7. Intentional Interference with Contract – Inducing Breach of Contract; 8. Violations of Voidable Transfer Act - Civil Code § 3439.04(a)(1); and 9. Violations of Voidable Transfers Act - Civil Code § 3439.04(a)(2) Notably, the 7th cause of action for Intentional Interference with Contract – Inducing Breach of Contract is directed against Defendants ZENINC, Rossano, and Does 1-25. Moving Party here is Defendant Zero Effort Nutrition, L.P. dba ZEN Foods ("ZENLP"). Moving Party fails to explain how it has standing to demurrer to a cause of action not directed to it. As such, the demurrer is overruled. As to Venue, in paragraph 13 of the Complaint, Plaintiff pleads: "13. Venue for this action is proper in Orange County, California, in accordance with Code of Civil Procedure § 395 et seq., for numerous reasons: "a. The contract alleged herein arose in Orange County and specifies Orange County venue for legal proceedings; "b. The defendants waived any objection to venue in Orange County by failing and refusing to participate in the alternative dispute resolution procedures specified in the contract alleged herein;

		"c. Plaintiff resides in Orange County and performed the contract in Orange County; "d. The defendants did business with Plaintiff in Orange County, and recently did and/or currently do business in Orange County in the ordinary course of their business; and "e. The defendants' performance obligations under the contract alleged herein were to be completed in Orange County, and, therefore, the defendants' breaches and violations took place in Orange County." Generally, except as otherwise provided by law and subject to the power of the court to transfer … the county where the defendants or some of them *reside* at the commencement of the action is the proper court for the trial of the action." [CCP § 395(a) (emphasis added); *see Brown v. Sup.Ct. (C.C. Myers, Inc.)* (1984) 37 Cal.3d 477, 483.] The defendant has the right to have a transitory action against the defendant tried in the county where the defendant resides. Defendant's right to have the action tried at defendant's residence is subject to the qualification "Except as otherwise provided by law". The "general rule" of venue has effect only when no other venue provision applies. Wherever there is a more specific venue statute, the "general rule" is subordinated. [*Brown v. Sup.Ct. (C.C. Myers, Inc.)* (1984) 37 Cal.3d 477.] As to breach of contract actions, such actions are triable in the county where defendant resides OR where the contract was entered into OR where it was to be performed (if specified in writing). [CCP § 395(a).] This means the place where the acceptance occurred (e.g., where it was mailed, or where words of acceptance spoken). [*See Wilson v. Scannavino* (1958) 159 Cal.App.2d 369, 370-371, 324 P2d 350, 351—contract negotiated by telephone "entered into" where acceptor spoke] The place of making is deemed to be the place of performance unless a different place is specified in a "special contract in writing." [CCP § 395(a)] Here, Cherry Kiely, Managing Member of Plaintiff Perceptive Tax Advisory Group, LLC, declares that she signed the contract at issue from Plaintiff's office in Orange County. (Decl. Kiely¶4.) She also declares that, "PTAG fully performed its services under the Agreement, and every service was performed by PTAG personnel working from PTAG's Orange County offices." (Id.¶9.) Finally, she declares, "PTAG issued its invoices for the engagement from its Orange County offices, and the invoices

		directed that payment be remitted to PTAG by wire or ACH pursuant to the instructions stated on the invoices. Payment was therefore to be made to PTAG in Orange County." (Id.¶10.) However, in the reply, Defendant submits evidence Mariana Rossano, (Defendant's General Partner) that: "4. On or about May 23, 2022, I executed the Agreement on behalf of ZENLP by DocuSign, signing in the capacity of "CEO" of Zero Effort Nutrition. I executed the Agreement from ZENLP's Sun Valley, Los Angeles County offices. I have never conducted business on behalf of ZENLP from any location in Orange County, and I did not do so in connection with the execution of the Agreement. "5. ZENLP's operating bank accounts, financial records, and bookkeeping are maintained exclusively in Los Angeles County. All authorizations for ZENLP's disbursements—including any payment that would have been due under the Agreement—are made from ZENLP's Sun Valley offices. No ZENLP account, record, or disbursement authority is, or has ever been, located or exercised in Orange County." Per the prior declaration of Ms. Kiely, Ms. Rossano signed after her. Therefore, it appears Ms. Rossano was the last act. "The last act necessary to the validity of a contract, usually the act constituting acceptance, is the place of its making." [*Jhirmack Enterprises, Inc. v. Superior Court* (1979) 96 Cal.App.3d 715, 723.] Also, it would appear that the breach occurred in LA as well because this case is about Defendant's alleged failure to pay, and Ms. Rossano declares, "All authorizations for ZENLP's disbursements— including any payment that would have been due under the Agreement—are made from ZENLP's Sun Valley offices". As such, venue is proper in LA because Defendant is a resident of LA, the contract was entered into in LA, and breached in LA. Therefore, the Motion for Change of Venue is GRANTED. *Defendant to give notice.*
105	Am-Kore Fire Protection Co. Inc. vs. Phoebecat Investments, LLC, 24-01398810	Plaintiff Am Kor Fire Protection Co., Inc. ("Am-Kor") moves the Court for an order consolidating the following actions pursuant to Cal. Civ. Proc. Code § 1048(a): - Am-Kor Fire Protection Co., Inc. v. Phoebecat Investments, LLC, et al., Orange County Superior Court Case No. 30-2024-01398810-CU-BC-WJC (the

"Breach of Lease Action")

- Am-Kor Fire Protection Co., Inc. v. Phoebecat Investments, LLC, et al., Los Angeles County Superior Court Case No. 24PSCV03747 (the "Fraudulent Conveyance Action")

Initially, when actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (CCP §1048(a).)

A complete consolidation may be ordered where the parties are identical and the causes of action could have been joined. The pleadings are regarded as merged, one set of findings is made, and one judgment is rendered. Because the actions are effectively merged, parties who appeared in either action are subject to the court's jurisdiction in the merged action. [*See Hamilton v. Asbestos Corp., Ltd*. (2000) 22 Cal.4th 1127, 1147-1148.]

Consolidation is limited to cases pending in the same court. Where cases having "common questions" are pending in different courts, as here, either court may order "noncomplex" cases transferred to and consolidated with cases pending before the court; "complex" cases must be "coordinated" with each other. [CCP §§ 403, 404.]

To that end, Code Civ. Proc., § 403 provides:

"A judge may, on motion, transfer an action or actions from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. The motion shall be supported by a declaration stating facts showing that the actions meet the standards specified in Section 404.1, are not complex as defined by the Judicial Council and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action. Notice of the motion shall be served on all parties to each action and on each court in which an action is pending. Any party to that action may file papers opposing the motion within the time permitted by rule of the Judicial Council. The court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing."

Here, the motion was served on Wendy Hong Trinh, Billy Ha, and PLC Home Design, LLC.

		However, notice of motion was not served on Defendant PHOEBECAT INVESTMENTS, LLC or Bill Tran. Moreover, there is no indication notice of the motion was served in the LASC case as required by CCP §403. Therefore, the Motion is DENIED without prejudice. Even if there were proper notice, the motion would likely be denied. The parties are not identical, nor do they involve common questions of law. Plaintiff initiated this action on 5/10/2024 against Defendants 1) PHOEBECAT INVESTMENTS LLC, 2) WENDY HONG TRINH, and 3) BILLY N. HA for Breach of Lease et al. (ROA 2) Thereafter, on 11/1/2024 Plaintiff initiated another action in LASC against 1) PHOEBECAT INVESTMENTS LLC, 2) WENDY HONG TRINH, 3) BILLY N. HA, 4) BILL TRAN, 5) PLC HOME DESIGN LLC for Violation of Uniform Voidable Transactions Act. In the LASC lawsuit, Plaintiff pleads: "33. Days after being threatened with the filing of the Action in March of 2024, on or about April 2, 2024, Trinh fraudulently transferred the Property to her and Ha's son Tran via a Grant Deed ("Trinh to Tran Transfer") recorded with the Los Angeles County Recorder's Office on April 2, 2024 as Document Number 20240212127. Attached hereto as Exhibit A is a true and correct copy of the Trinh to Tran Transfer Grant Deed." [Decl. of Hifai¶10, Ex. C. .] Notably, the LASC action has two more defendants named: Bill Tran and PLC Home Design LLC. Additionally, there are no common questions of law as to breach of lease and fraudulent conveyance. Rather, the Fraudulent Conveyance allegedly occurred after threat of the Breach of Lease lawsuit. Although some of the parties are the same, (and one lawsuit arose from the threat of another) there is no need to transfer or consolidate these matters. There is no evidence that transfer, coordination, and consolidation will result in the avoidance of unnecessary costs or delay. Notably, Plaintiff chose to file two separate cases in two separate counties. This case has been pending for over two years and is set for trial on 2/8/2027. There is no indication as to the status of the LASC case, but it is likely consolidating the cases could result in the further delay of this matter. *Plaintiff to give notice.*

106	Home Mortgage Alliance Corporation (HMAC) vs. Turturro, 24-01402022	<u>Defendants' Motion for Judgment on the Pleadings</u> Defendants, Michael Turturro ("Turturro"); OCMBC, Inc. ("OCMBC"); and Jet Alliance (collectively, "Defendants"), seek judgment in Defendants' favor and dismissal with prejudice of the third through seventh, ninth, and twelfth through fifteenth causes of action of Plaintiff, Home Mortgage Alliance Corporation's Second Amended Complaint ("SAC"). Defendants contend that the third through seventh, ninth, and twelfth through fifteenth causes of action asserted by Plaintiff, Home Mortgage Alliance Corporation ("HMAC"), in the SAC, are preempted by the California Uniform Trade Secrets Act ("CUTSA"), as they are based on the same nucleus of facts as the cause of action for misappropriation of trade secrets, and thus, should be dismissed with prejudice. Defendants separately contend that they are entitled to judgment on Plaintiff's fourth and fifth causes of action for Tortious Interference with Contract and Tortious Interference with Prospective Economic Advantage, respectively, because Plaintiff fails to identify any specific third-party contract or specific prospective economic relationship as required by law. They additionally contend that OCMBC is entitled to judgment on Plaintiff's sixth cause of action for breach of fiduciary duty cause of action because there are no allegations that OCMBC owed Plaintiff any fiduciary duties, and that Defendants are entitled to judgment on Plaintiff's ninth cause of action for Accounting because it is not standalone cause of action in California. Finally, Defendants contend that leave to amend should be denied because Plaintiffs cannot separate the alleged scheme pled throughout the operative SAC and all prior pleadings without violating the rule against pleading inconsistent facts. HMAC contends that CUTSA preempts only those noncontract claims that seek recovery for the same legal wrong as trade secret misappropriation, and that each cause of action at issue rests on an independent legal duty or materially different wrongful conduct, such that the causes of action at issue are not preempted by CUTSA. HMAC asserts that none of the claims at issue depend for liability on confidential information, that the controlling inquiry is the gravamen or gist of each individual claim—not a tally of the complaint's references to "confidential" information, and that HMAC is entitled to plead alternative theories of liability. HMAC also asserts that the fourth cause of action is sufficiently pled as the SAC identifies the category of contracts at issue (the Broker Agreements), and that the fifth cause of action is sufficiently pled as the independently wrongful element is satisfied by the trademark and fraud allegations regardless of CUTSA. HMAC further asserts that the ninth cause of action for Accounting is an equitable remedy ancillary to independent claims, and that because HMAC's fiduciary duty, interference, trademark, passing-off, contract, and statutory

		claims survive, the corresponding request for an accounting likewise survives. HMAC contends that Defendants do not show that any cause of action at issue should be dismissed with prejudice, that the motion should be denied, and that alternatively, the Court should grant leave to amend should the Court perceive any deficiency. *Preemption* Defendants contend that Plaintiff's causes of action for: Inducing Breach of Written Contract (third cause of action), Tortious Interference with Contract (fourth cause of action), Tortious Interference with Prospective Economic Advantage (fifth cause of action), Breach Fiduciary Duty (sixth cause of action), Aiding and Abetting Breach Fiduciary Duty (seventh cause of action), Accounting (ninth cause of action), Unfair Competition (twelfth cause of action), Conversion (thirteenth cause of action), and Violation of Penal Code sections 496(c) (fourteenth cause of action) and Violation of Penal Code section 502 (fifteenth cause of action) are preempted by CUTSA as these ten causes of action either overlap entirely with Plaintiff's CUTSA cause of action and/or they are based on the same nucleus of facts. HMAC contends that the most recent authority, *Guild Mortgage Co. LLC v. CrossCountry Mortgage LLC* (2026) 120 Cal.App.5th 885, is squarely on point, confirms that CUTSA does not displace business-tort claims grounded in a competitor's coordinated scheme of disloyalty and sabotage, and undercuts *K.C. Multimedia, Inc. v. Bank of America Technology & Operations, Inc*. (2009) 171 Cal.App.4th 939, upon on which Defendants rely. HMAC asserts that misappropriating Plaintiff's confidential information was but one minor element of defendants' much larger scheme to breach fiduciary duties, usurp Plaintiff's goodwill and tradename, and interfere with Plaintiff's business, and that the gravamen or gist of each cause of action at issue on an independent legal duty or materially different wrongful conduct such that they are not preempted by CUTSA. CUTSA is codified in Civil Code sections 3426 through 3426.11 and preempts common law claims for misappropriation of trade secrets. (*K.C. Multimedia, Inc. v. Bank of America Technology & Operations, Inc*. (2009) 171 Cal. App. 4th 939, 954 ("*KC Multimedia*").) Common law claims for conversion, interference with contract, unjust enrichment, negligence, and unfair competition have been held preempted where they are based on the same nucleus of facts as the misappropriation of trade secrets claim. (*Id*. at pp. 954-955, 958-959.) The CUTSA, at Civil Code section 3426.7(b), preempts common law claims that are "based on the same nucleus of facts as the misappropriation of trade secrets claim for relief." (*Id*. at pp. 958-59.) "Depending on

		the particular facts pleaded, the statute can operate to preempt the specific common claims asserted . . . ." (*Ibid*.) CUTSA does not affect "(1) contractual remedies, whether or not based upon misappropriation of a trade secret, (2) other civil remedies that are not based upon misappropriation of a trade secret, or (3) criminal remedies, whether or not based up on misappropriation of a trade secret." (Civ. Code § 3426.7(b).) CUTSA "does not displace noncontract claims that, although related to at trade secret misappropriation, are independent and based on facts distinct from the facts that support the misappropriation claim. [Citations.]" (*Angelica Textile Services, Inc. v. Park* (2013) 220 Cal.App.4th 495, 506.) Courts look to the gravamen of the complaint (its 'gist') to determine whether CUTSA displaces a common law cause of action. (*Guild Mortgage Co. LLC v. CrossCountry Mortgage LLC* (2026) 120 Cal.App.5th 885, 899 ("*Guild Mortgage*").) The phrase "based upon misappropriation" "strongly suggests a factual inquiry, one that examines the conduct alleged in the claim." (*K.C. Multimedia, supra*, 171 Cal.App.4th at p. 958.) As a threshold matter, although CUTSA may preempt the tort causes of action other than the first cause of action for misappropriation of trade secrets based on the alleged wrongful scheme to steal confidential information and trade secrets to start a new mortgage division at OCMBC, that is not all that is alleged in the SAC. It is generally alleged that Turturro conspired with OCMBC "to effectively steal the entirety of the same "Jet Mortgage" Division from HMAC – including but not limited to HMAC's employees, Confidential Information, pipeline, resources, and trademarks - through a deliberate and premediated series of unlawful acts." (SAC, ¶ 45.) It is alleged that Turturro misappropriated HMAC's Confidential Employee Information, as well as that Turturro and OCMBC "raided the same employees that HMAC engaged Turturro to hire, train, and develop for HMAC," and "convinced them to resign from HMAC and instead work for OCMBC." (SAC, ¶ 46.) It is additionally alleged that Turturro and OCMBC unlawfully infringed on HMAC's "Jet Mortgage" trade name. (SAC, ¶ 47.) These allegations are incorporated into every cause of action at issue. The Court finds the facts alleged here similar to that in *Guild Mortgage*. In *Guild Mortgage*, the complaints alleged that plaintiff (Guild) and defendant (CCM) were rival nationwide residential mortgage lenders, and during an 18-month period, defendant induced and conspired with several of plaintiff's Kirkland, Washington branch employees "to gut the branch by (1) recruiting their colleagues at Guild to come

		work for CCM, (2) diverting Guild's customers to CCM, and (3) converting Guild's pipeline of active loan applications to CCM—all while those employees were still employed, and being paid, by Guild." (*Guild Mortgage, supra*, 120 Cal.App.5th at p. 889.) It was also alleged that in furtherance of the conspiracy, "CCM and its coconspirators accessed Guild's computer system and, without Guild's knowledge or authorization, copied valuable confidential information that was stored on the system and then used that information to help CCM gain a competitive advantage over Guild." (*Ibid*.) It was additionally alleged that the conspiracy resulted in a mass resignation of all or virtually all of the dozens of Guild employees who had been working at the Kirkland branch, in CCM's hiring of many of those employees, and in Guild losing the entire Kirkland branch. (*Id*. at p. 890.) Here, in a similar vein, the SAC alleges that "Turturro was recruited by OCMBC and conspired with OCMBC to steal HMAC's trade, by stealing its Confidential Information, its brand, and its goodwill." (SAC, ¶ 40.) It is alleged that Defendants misappropriated HMAC's Confidential Employee Information, Confidential Customer Information, trademark, tradename, and/or trade secrets, and raided its employees, to "effectively steal the entirety of the same 'Jet Mortgage' Division from HMAC." (SAC, ¶¶ 45, 49.) In this regard, "the conduct alleged here goes far beyond merely taking and using confidential information" as the Court of Appeal in *Guild Mortgage* found. (*Guild Mortgage, supra*, 120 Cal.App.5th at p. 900.) The factual distinctions identified by Defendants that HMAC and OCMBC operate in the wholesale mortgage space where independent brokers are free to do and work with multiple lenders, not individuals borrowers, and that there was no branch destruction or total loss of an operating unit as Jet Mortgage has continuously operated since Turturro's departure, are irrelevant to determining the gravamen or gist of the SAC or each at issue cause of action. The third cause of action for Inducing Breach of Contract contends that OCMBC intentionally caused Turturro to breach the Offer Letter, Executive Compensation Agreement, Confidentiality Agreement, and Mutual Confidential Disclosure Agreement, and that OCMBC intended to cause Turturro to breach these agreements as it obtained the fictitious business name "Jet Advantage Mortgage" before Turturro's separation with HMAC, and by the existence of draft employee agreements prepared by OCMBC for the eventual hiring of then current HMAC employees. (SAC, ¶¶ 74-76.) It is alleged that OCMBC's misconduct caused Turturro to breach the Agreements, and seeks, among other things, an injunction prohibiting OCMBC from further causing Turturro's breach of the Agreements, and from further using or disclosing HMAC's

		Confidential Information and requiring OCMBC to return HMAC's Confidential Information. (SAC, ¶¶ 77, 80.) The alleged breach by Turturro includes an breach of an agreement to avoid "any personal interests or relationships that actually or potentially conflict with the best interests of the Company" and stole HMAC's trade name, "Jet Mortgage," as well as engaged in conflicts of interest and breaches of fiduciary and tort duties by competing with HMAC and stealing HMAC's business and property. (SAC, ¶¶ 68-70.) Based on the allegations, the alleged misappropriation of trade secrets is a mechanism by which Defendants allegedly stole the entirety of the same 'Jet Mortgage' Division from HMAC, and it is also alleged that Defendants misappropriated HMAC's trade, brand, and goodwill. In turn, the second cause of action is not displaced by CUTSA. The fourth cause of action for Intentional Interference with Broker Contracts is based on the alleged disruption of HMAC's broker relationships by misappropriating HMAC's trade name, answering calls as "Jet" to deliberately confuse callers, improperly soliciting HMAC's mortgage brokers by pretending to be "Jet Mortgage" (HMAC), and misrepresenting to mortgage brokers that "Jet Mortgage" (HMAC) was going to of business. (SAC, ¶¶ 84-85.) As such, it is not based on a misappropriation of trade secret. The fifth cause of action for Intentional Interference with Prospective Economic Relations alleges that Defendants "engaged in wrongful conduct as alleged throughout this Complaint, including, without limitations, their theft of HMAC's trade name 'Jet Mortgage,' theft of HMAC's brokers relationships, theft of HMAC's Confidential Information, including its client lists, customer data, loan databases, and other wrongful conduct." (SAC, ¶ 92.) This cause of action is not based entirely on the same factual allegations that form the basis of the cause of action for misappropriation of trade secrets, and is based on facts that are unrelated to the alleged misappropriation of any trade secret. The sixth cause of action for Breach of Fiduciary Duty alleges that Turturro owed HMAC and its shareholders fiduciary duties in his role as corporate officer, as well as had contractually imposed fiduciary duties, and that these fiduciary duties of care and loyalty "entail[ed] treating HMAC with care and engaging in reasonable conduct, being open and honest with HMAC, acting in good faith and in HMAC's best interest, putting his relationship and HMAC above personal interests, and avoiding self-dealing and conflicts of interest." (SAC, ¶ 102.) It is alleged that Turturro engaged in wrongful conduct and self-dealing, in breach of his fiduciary duties. (SAC, ¶ 103.) Under these allegations, this cause of action is not based on trade secret misappropriation.

		The seventh cause of action for Aiding and Abetting Breach of Fiduciary Duty alleges that OCMBC is responsible for HMAC's harm from Turturro's breaches of fiduciary duty as it aided and abetted Turturro in committing those breaches by "obtaining the infringing fictious name 'Jet Advantage Mortgage,' drafting employment agreements intended for then current HMAC employees at a time prior to Turturro's departure from HMAC, and carrying out the conspired plan by utilizing its infrastructure to further steal HMAC Confidential Information and its trade name 'Jet Mortgage,' including, without limitation, utilizing its website domain, social media accounts, physical address, and other corporate assets to further assist Turturro in his theft of HMAC's trade." (SAC, ¶ 111.) As HMAC's breach of fiduciary claim is not based on trade secret misappropriation, nor is OCMBC's alleged aiding and abetting of Turturro's breach of fiduciary duties based on trade secret misappropriation. The ninth cause of action for Accounting is based upon all of the allegations alleged above, and thus, is based on alleged wrongful conduct other than the misappropriation of trade secrets, as discussed above. (SAC, ¶¶ 126-128.) The twelfth cause of action for Violation of Business & Professions Code section 17200 incorporates the prior allegations above, and alleges that "Defendants' foregoing misconduct constitutes unlawful, unfair, and fraudulent business acts and practices under Business and Professions Code sections 17200, et seq. and has harmed HMAC and deprived it of, inter alia, skilled employees, name, goodwill, mortgage applications, and mortgage brokers." (SAC, ¶¶ 144-145.) Based on these allegations, the twelfth cause of action is not based entirely on the misappropriation of trade secrets, but is also based upon trademark infringement and breach of fiduciary duty, among other misconduct. The thirteenth cause of action for Conversion alleges: "HMAC possesses a property right over its electronic and hard copy files, including but not limited to various databases, loan files and portfolio, contracts, correspondence and attachments, contracts and agreements, marketing materials and related reports and spreadsheets, as well as customer lists, client lists, relating reports, existing loan and pipeline loans, employee information, marketing plans, and market research. HMAC also possesses a property interest in its Confidential Information." (SAC, ¶ 149.) It is also alleged that under Labor Code section 2860, "everything that Turturro acquired by virtue of his employment at HMAC, except his compensation, remained the sole property of HMAC during and after Turturro's employment." (SAC, ¶ 150.) It is alleged that Turturro substantially interfered with HMAC's property, including its Confidential Information, by knowingly and intentionally taking wrongful possession of,

		among other things, HMAC's electronic and hard copy files, documents, communications, and databases, HMAC's trade name "Jet Mortgage" and all designs, sketches, drawings, and models that make up the trade name. (SAC, ¶ 151.) Thus, this cause of action is not based entirely upon misappropriation of trade secrets. The fourteenth cause of action for Violation of Penal Code section 496(c) provides for a civil cause of action for a person who has been damaged as a result of theft, and alleges that Defendants intentionally and substantially interfered with HMAC's exclusive possession of its property as pled above, including in paragraphs 150-152. (SAC, ¶¶ 158-159.) As such, consistent with the thirteenth cause of action, which contains the allegations in paragraphs 150-152, the fourteenth cause of action is not based solely on the misappropriation of trade secrets. Lastly, the fifteenth cause of action for violation of Penal Code section 502 alleges: "Turturro and OCMBC's theft as pled above, including in Paragraphs 150-152, was carried out through Turturro's knowing access and unauthorized use of HMAC's data, computers, computer systems or computer networks to execute Defendants' scheme and conspiracy to defraud, deceive, extort, and take wrongful control of HMAC's property, including its Confidential Information." (SAC, ¶ 162.) Consistent with the thirteenth cause of action which contains the allegations in paragraphs 150-152, the fifteenth cause of action is not based solely on the misappropriation of trade secrets. Additionally, the Court of Appeal in Guild Mortgage concluded that CUTSA does not displace civil claims under Penal Code section 502 for two independent reasons. (Guild Mortgage, supra, 120 Cal.App.5th at pp. 903-904.) First, because the social ills that CUTSA targets are different from the social ills the CCDAFA targets, and that "[t]his places the private right of action afforded by CCDAFA within the category of 'other civil remedies . . . not based upon misappropriation of a trade secret' (Civ. Code § 3426.7, subd. (b)(2)) that the CCDAFA, by its terms, 'does not affect.' [Citation.]" (*Id*. at p. 904.) As to the second reason, the Court of Appeal stated: "Second, given the fact that the Legislature chose to expand the degree of protection afforded by Penal Code section 502 by enacting a civil enforcement mechanism for it in the very same month (September 1984) in which it enacted CUTSA, we deem it implausible that the Legislature would have intended the civil remedy it added to one statutory framework to be swallowed up to so great an extent by the other statutory framework." (*Ibid*.) As a review of the allegations making up the subject causes of action indicates that each of these causes of action are not based entirely on the misappropriation of trade secrets, and is based on other alleged wrongful conduct, such claims are

not displaced by CUTSA. The motion judgment on the pleadings to Plaintiff's causes of action for: Inducing Breach of Written Contract (third cause of action), Tortious Interference with Contract (fourth cause of action), Tortious Interference with Prospective Economic Advantage (fifth cause of action), Breach Fiduciary Duty (sixth cause of action), Aiding and Abetting Breach Fiduciary Duty (seventh cause of action), Accounting (ninth cause of action), Unfair Competition (twelfth cause of action), Conversion (thirteenth cause of action), and Violation of Penal Code sections 496(c) (fourteenth cause of action) and Violation of Penal Code section 502 (fifteenth cause of action) based on CUTSA preemption is DENIED.

Fourth and Fifth Causes of Action
Defendants separately contend that they are entitled to judgment on Plaintiff's fourth and fifth causes of action for Tortious Interference with Contract and Tortious Interference with Prospective Economic Advantage, respectively, because Plaintiff fails to identify any specific third-party contract or specific prospective economic relationship as required by law. HMAC contends that the SAC identifies the category of contracts at issue for the fourth cause of action, and that any perceived lack of specificity would be curable by amendment. HMAC also contends that to the extent Defendants raise the same specificity objection as to the identity of the brokers and borrowers for the fifth cause of action, the independently wrongful element is satisfied by the trademark and fraud allegations regardless of CUTSA.

The tort of interference with the performance of a contract and interference with a prospective economic relationship are related but distinct. (*Ixchel Pharma, LLC v. Biogen* (2020) 9 Cal.5th 1130, 1141.) "Tortious interference with contractual relationship requires '(1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.' [Citations.]" (*Ibid*.) "Tortious interference with contractual relationship requires '(1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.' [Citations.]" (*Ibid*.)

Here, the fourth cause of action alleges that "broker agreements existed between HMAC and numerous mortgage brokers." (SAC, ¶ 82.) Therefore, it sufficiently identifies the third-party contracts at issue.

The fifth cause of action alleges that "HMAC was in an economic relationship with numerous mortgage brokers and borrowers that likely would have resulted in an economic benefit to HMAC," and that Defendants disrupted such relationships by their wrongful conduct. (SAC, ¶¶ 90, 93.) Therefore, it sufficiently identifies the specific prospective economic relationships.

The Court DENIES the motion for judgment on the pleadings as to the fourth and fifth causes of action.

Sixth Cause of Action

Defendants contend that OCMBC is entitled to judgment on Plaintiff's sixth cause of action for breach of fiduciary duty cause of action because there are no allegations that OCMBC owed Plaintiff any fiduciary duties, and no such allegation could be made as OCMBC is a third-party and is not alleged to have been employed by, or have any other special relationship with, Plaintiff.

HMAC's opposition does not address this argument.

The three elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820.)

The sixth cause of action is brought against Turturro and OCMBC. However, there are no allegations in the SAC supporting the existence of a fiduciary relationship between HMAC and OCMBC, nor does it appear that this deficiency could be rectified by amendment. Therefore, the Court GRANTS, without leave to amend, the demurrer to the sixth cause of action as to Defendant OCMBC only.

Ninth Cause of Action

Defendants contend that they are entitled to judgment on Plaintiff's ninth cause of action for Accounting because it is not standalone cause of action in California.

HMAC contends that an accounting is derivative of HMAC's substantive claims that support equitable relief, and because HMAC's fiduciary duty, interference, trademark, passing-off, contract, and statutory claims survive, the corresponding request for an accounting likewise survives.

The elements of a cause of action for an accounting are: (i) a relationship exists between the plaintiff and defendant that requires an accounting; and (ii) some balance is due the plaintiff that can only be ascertained by an accounting.

(*Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 179.) A fiduciary relationship is not required for a cause of action for accounting. (*Ibid*.) All that is required is some relationship requiring an accounting, such as possession by the defendant of money or property which defendant may be obligated to surrender. (*Id*. at pp. 179-180.)

An accounting is treated as a cause of action available to a wronged fiduciary, and is an equitable form of remedy dependent upon a substantive basis for liability. (*Glue-Fold, Inc. v. Slautterback Corp*. (2000) 82 Cal.App.4th 1018, 1023, fn. 3.)

Here, as HMAC's other causes of action remain viable, including those to which Defendants do not demur, the ninth cause of action for accounting also remains viable. The Court DENIES the motion for judgment on the pleadings as to the ninth cause of action.

Defendants to file and serve an Answer to the SAC within 10 days.

<u>Cross-Defendant Michael Turturro's Motion for Judgment on the Pleadings</u>
Defendant/Cross-Complainant, Michael Turturro ("Turturro"), moves for judgment on the pleadings, without leave to amend, in favor of Cross-Complainant on the eleventh and twelfth causes of action in Cross-Complainants' Second Amended Cross-Complaint, and dismissing with prejudice Home Mortgage Alliance Corporation's claim for breach of written contract in Plaintiffs' Second Amended Complaint.

As a threshold matter, the Court notes that the Second Amended Cross-Complaint has not been formally filed.

On June 2, 2026, the parties filed a Joint Stipulation to Continue Trial Date, Permit Filing of Second Amended Cross-Complaint, Set Mediation, and Set Discovery Schedule ("Joint Stipulation"), which states, in relevant part: "HMAC stipulates and agrees to the filing of Cross-Complainants Michael Turturro and Jet Alliance's Second Amended Cross-Complaint ("SACC"), attached hereto as Exhibit A, with a redline showing the differences between the Amended Cross Complaint and Second Amended Cross-Complaint attached hereto as Exhibit B." (ROA 462, Joint Stipulation, ¶ 2.) A status conference re: Joint Stipulation was scheduled for June 18, 2026, and the Minute Order dated June 18, 2026, does not contain any order on the filing of the Second Amended Cross-Complaint. (ROA 467, 505.)

Thus, while the parties may have agreed to the filing of Michael Turturro and Jet Alliance's Second Amended Cross-

		Complaint ("SAXC"), and the Court has implicitly allowed the filing of the SAXC, it has not been properly filed. Code of Civil Procedure section 471.5, states, in part: "If the complaint is amended, a copy of the amendments shall be filed, or the court may, in its discretion, require the complaint as amended to be filed, and a copy of the amendments or amended complaint must be served upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) "For the purposes of this subdivision, 'complaint' includes a cross-complaint, and 'defendant' includes a person against whom a cross-complaint is filed." (*Ibid*.) That a copy of SAXC is attached as an exhibit to the Joint Stipulation, does not satisfy the filing requirement. There is no order deeming the SAXC to have been filed by way of the filing of the Joint Stipulation, or on the date of the filing of the Joint Stipulation, i.e., June 2, 2026. As the SAXC has not been properly filed, the SAXC is not before the Court, and the Court is unable to rule on the Motion for Judgment on the Pleadings directed at the eleventh and twelfth causes of action of the SAXC. Turturro's motion for judgment on the pleadings (ROA 493) is CONTINUED to October 1, 2026 at 1:30 p.m. in Department W15. Turturro to immediately file and serve the SAXC, and no later than nine (9) court days before the continued hearing date. No further briefing will be permitted or considered. <u>Cross-Defendants' Motion to Strike</u> Cross-Defendants, Home Mortgage Alliance Corporation (HMAC) and Alfred Hanna move to strike the following portions from the Second Amended Cross-Complaint of Cross-Complainants, Michael Turturro and Jet Alliance: Heading "E", in its entirety, and paragraphs 30-37 and 90-91, in their entirety. Cross-Defendants' motion to strike is CONTINUED to October 1, 2026 at 1:30 p.m. in Department W15 for the same reasons Turturro's motion for judgment on the pleadings is continued. No further briefing will be permitted or considered. *HMAC to give notice of all motions.*

108	Garces vs. Kia America, Inc., 25-01498608	Defendant Kia America, Inc. (“Defendant”) moves for summary judgment or, in the alternative, adjudication of issues as to Plaintiff Keren Garces’ Complaint. The motion is unopposed. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (CCP §437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 (pleadings serve as the outer measure of materiality in a summary judgment motion)). Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The Complaint asserts causes of action for: 1) Breach of Implied Warranty; 2) Breach of Express Warranty; and 3) Violation of the Song Beverly Consumer Warranty Act. *First Causes of Action for Breach of Implied Warranty* Defendant contends that the first cause of action for breach of implied warranty is fails because the vehicle purchased was a used vehicle, and therefore there is no implied warranty. Civil Code Section 1791(a) defines consumer goods as “any new product or part thereof…” (Cal. Civ. Code § 1791(a). Although the Complaint alleges the 2016 Kia Sorento at issue was new, Defendant has produced the Sales Contract, which indicates that the vehicle was used when sold to Plaintiff. (Compl. Bernardi Decl., Exh. A.) Even if an implied warranty was applicable to Plaintiff’s purchase, the action was filed outside the four year statute of limitations. Commercial Code section 2725 provides in pertinent part: “(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.”

		Here, it is undisputed that Plaintiff purchased the vehicle on May 12, 2019. (UF 1.) There are no allegations in the Complaint that any defects presented during the one year implied warranty period. (See Civ. Code §1791.1(c).) Plaintiff initiated this action more than 6 years after purchase of the vehicle, on July 21, 2025. (See ROA No. 2.) Thus, the first cause of action fails. *Second Causes of Action for Breach of Express Warranty* Defendant contends the second cause of action for breach of express warranty is also barred by the four-year statute of limitations of Commercial Code 2725. As set forth above, Plaintiff filed this action more than six years after delivery of the vehicle. The Court further notes that the Complaint does not contain any allegations that the express warranty extended to future performance; nor is there any allegation of delayed discovery. Accordingly, the second cause of action is barred by the statute of limitations. *Third Cause of Action for Violation of the Song Beverly Consumer Warranty Act* Defendant contends that the third cause of action for violation of the Song Beverly Consumer Warranty Act is also governed by and barred by the four year statute of limitations found in Commercial Code §2725. (*See Krieger v Nick Alexander Imports* (1991) 234 Cal.App.3d 205, 215.) To the extent that the six year statute of limitations set forth in Code of Civil Procedure section 871.21, which came into effect on January 1, 2025, applies to this cause of action, it would also bar this claim. Pursuant to Code of Civil Procedure section 871.21, subdivision (b), "an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).) The above applies to "an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with

		the applicable express warranty." (Code Civ. Proc., § 871.20, subd. (a) [emphasis added].) A set forth above, it is undisputed that Plaintiff purchased the vehicle on May 12, 2019. (UF 1.) Additionally, a review of the record confirms that Plaintiff initiated this action more than 6 years later, on July 21, 2025. (See ROA No. 2.) Thus, the third cause of action is barred by the statute of limitations. Accordingly, summary judgment is GRANTED. *Moving party to give notice and to prepare a proposed judgment.*